

for the benefit of Minor.

Analyses

A Petition for Minor's Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition.

Ruling

1. The Petition is **granted**. The Court will execute the (a) Proposed Order Approving Compromise of Minor's Claim and the (b) Proposed Order to Deposit Funds into a Blocked Account lodged on February 27, 2026.
2. The Court orders Petitioner to secure the Bank's signature on **Form MC-356** (*Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account*). Petitioner must file this signed receipt back with the court within thirty (30) days to prove the money is safely deposited in a blocked account.

18. 9:01 AM CASE NUMBER: C25-00985

CASE NAME: CHASE MOUTON VS. HUAN LI

HEARING ON MOTION FOR DISCOVERY COMPEL PLTF CHASE MOUTON FURTHER RESPONSE TO FORM INTERROGATORY

FILED BY: LI, HUAN

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 18, 19, 20, which are discovery motions pending before the Court. The following motions are on calendar for July 15, 2026 at 9:00 a.m.:

1. Defendants Huan Li and Xiaosong Wong ("Defendants") Motion to Compel Plaintiff Chase Mouton's ("Chase") Further Response to Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026.
2. Defendants Motion to Compel Further Response to Plaintiff Catherine Mouton's ("Catherine") Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026; and
3. Defendants Motion to Compel Plaintiff Chase Mouton's Further Response to Request for Production of Documents, Nos. 1-5

The Court also advances, *sua sponte*, the following Motion calendared for July 22, 2026 to be heard on July 15, 2026 at 9:00 a.m.

4. Defendants Motion to Compel Catherine's Further Responses to Request for Production of Documents, Nos. 1-5.

The rulings on each of these motions are set forth below.

Background

In their 127 page complaint filed on April 8, 2026, Plaintiffs Chase Mouton, Catherine Mouton, and their minor child (collectively "Plaintiffs") leased residential property located at 2674 Torrey Pines Drive, Brentwood, California from Defendants Huan Li and Xiaosong Wang ("Defendants"). The parties entered into a lease agreement dated August 28, 2024, with a term extending through May 27, 2026, at a monthly rent of \$4,200. Plaintiffs allege they paid a security deposit of \$8,400, which they contend exceeds the one-month limit established by California Assembly Bill 12. Plaintiffs assert that throughout the tenancy, the Property suffered from substantial habitability defects rendering it unfit for human occupancy. These alleged conditions include: lack of insulation and ducting in the attic; rodent infestation, including rat feces in the attic; water and irrigation leaks; and excessively high electricity bills attributable to the lack of insulation. Plaintiffs contend these conditions violate California Civil Code sections 1941.1 and 1942, as well as Health and Safety Code section 17920.3 governing substandard buildings.

According to the Complaint, Plaintiffs notified Defendants of these defective conditions and requested repairs, but Defendants either failed to remediate the issues entirely or performed

inadequate repairs that left the habitability violations unaddressed. Plaintiffs allege Defendants had adequate notice and opportunity to correct these conditions prior to the filing of this action but failed to do so.

The Complaint asserts five causes of action against Defendants: (1) breach of the implied warranty of habitability; (2) contractual breach of the warranty of habitability; (3) breach of the covenant of quiet enjoyment under Civil Code section 1927; (4) private nuisance under Civil Code sections 3479, 3481, and 3501; and (5) negligence. Plaintiffs allege Defendants breached their statutory and common law duties to maintain the premises in a habitable condition and to refrain from interfering with Plaintiffs' use and enjoyment of the Property.

Plaintiffs seek damages for emotional distress, discomfort and annoyance, nuisance, overpayment of rent, and excessive utility costs allegedly caused by the defective conditions. They also seek statutory interest, costs of suit, and other relief as the Court may deem appropriate. Plaintiffs have demanded a jury trial.

Defendants served Form Interrogatories and Requests for Production of Documents to Plaintiffs, which are the subject of these motions. Defendants claim that the responses provided by Plaintiffs are insufficient and require further responses.

Analysis

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C].

Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to

compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Meet and Confer

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

Here, the record presented to the Court demonstrates that Counsel met and conferred on the outstanding issues via e-mail, but are unable to resolve the discovery disputes before Plaintiff filed this third motion. The Court questions whether Counsel have strictly complied with Section 2016.040 which requires counsel to “talk in person, by telephone, or by video conference” rather than just send e-mails to each other. Counsel are admonished that any future discovery motions will be scrutinized to determine compliance with this mandatory provision of the code.

Ruling

1. The Court makes the following rulings on Defendant’s Motion to Compel Chase Mouton’s Further Response to Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026.

- The Motion to Compel is **denied**. Under California Rules of Court, rule 3.1345(a), a motion to compel further responses must also be accompanied by a separate statement containing the requests and the responses, **verbatim**, as well as **reasons why a further response is warranted. This must be complete in itself, and no extrinsic materials may be incorporated by reference.** Rule 3.1345(c.) A trial court is within its discretion to deny motion to compel discovery where a party has not filed a separate statement in conformity with these rules. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 (party's failure to ensure compliance of separate statement with California Rules of Court justified the trial court's denial of discovery motion). Here, Defendants' Counsel fails to comply with California Rule of Court Rule no. 3.1345(c), which states:

"A separate statement is a **separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.** Material must not be incorporated into the separate statement by reference. The separate statement must include-for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested-the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
 - (2) The text of each response, answer, or objection, and any further responses or answers;
 - (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
 - (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
 - (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
 - (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document." [Emphasis added]
- Counsel's purported statement does strictly adhere to the requirements of Rule 3.1345(c) and refers to extrinsic correspondence and other documents, making it very difficult for the Court to review the pertinent issues in one document. Counsel is admonished to strictly adhere to Rule 3.1345 for all future discovery motions.
 - Defendant's request for sanctions are **denied**. Each party to pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

2. The Court makes the following ruling on Defendants Motion to Compel Further Response to Catherine's Form Interrogatories Nos. 2.12, 2.13 and 12.1, and for sanctions in the amount of \$2,400 filed on February 23, 2026; and

- Interrogatory No. 2.12: **Granted**. Plaintiff's objections are **overruled**. Catherine is ordered to provide further responses this interrogatory, including each sub part.
- Interrogatory No. 2.13: **Granted**. Plaintiff's objections are **overruled**. Catherine is ordered to provide further responses this interrogatory, including each sub part.
- Interrogatory No. 12.1: **Granted**. Plaintiff's objections are overruled. Catherine is ordered to provide further responses this interrogatory, including each sub part. To the extent that Plaintiffs Catherine and Chases are the only individuals who witnessed the incident, made statements or have knowledge of the incident, no further responses are required.
- Further verified responses shall be provided no later than ten (10) days from the date of entry of this order.
- Defendant's request for sanctions are **denied**. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

3. The Court makes the following ruling on Chase's Motion to Compel Plaintiff Chase Mouton's Further Response to Request for Production of Documents, Nos. 1-5

- Request No. 1, 2, 3,4,5: **Granted** in part. **Denied** in part. Plaintiff has identified the documents that are responsive and has agreed to produce these documents. If they have not already been produced, Chase is ordered to make the documents available for inspection, or copying no later than ten (10) days from the date of entry of this order.
- Defendant's request for sanctions are **denied**. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

4. Defendants Motion to Compel Catherine's Further Responses to Request for Production of Documents, Nos. 1-5.

- Request No. 1, 2, 3,4,5: **Granted** in part. **Denied** in part. Plaintiff has identified the documents that are responsive and has agreed to produce these documents. If they have not already been produced, Chase is ordered to make the documents available for inspection, or copying no later than ten (10) days from the date of entry of this order.
- Defendant's request for sanctions are **denied**. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

5. The hearing on Defendants' Motion to Compel Catherine's Further Response to Request for Production of Documents Nos. 1-5, calendared for July 22, 2026, is advanced to July 15, 2026. Since it is advanced to July 15, 2025, the hearing on July 22, 2026 is **vacated**.

6. Defendants Counsel is ordered to prepare and e-file proposed orders conforming to the foregoing ruling, attaching this tentative ruling, no later than ten (10) days from the date of the hearing. Defendants' Counsel shall obtain approval as to form of the proposed order from Plaintiffs' counsel.

19. 9:01 AM CASE NUMBER: C25-00985
CASE NAME: CHASE MOUTON VS. HUAN LI
HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF CATHERINE MOUTON FURTHER
RESPONSE TO FORM INTERROGATORY
FILED BY: LI, HUAN

TENTATIVE RULING:

See Line 18

20. 9:01 AM CASE NUMBER: C25-00985
CASE NAME: CHASE MOUTON VS. HUAN LI
HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF CHASE MOUTON'S FURTHER
RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENT NO.1-5
FILED BY: LI, HUAN

TENTATIVE RULING:

See Line 18